

Brian M. Fogarty

[REDACTED]

[REDACTED]

December 1, 2025

U.S. District Court Annex
85 Broad St.
Charleston, SC 29401

RECEIVED
U.S. DISTRICT COURT
CHARLESTON, SC
DEC 1 2025

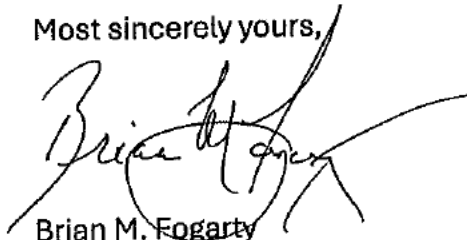
To the officer of the court,

I am requesting that you add the enclosed information to the court records of Civil Action No. 2:25-cv-00405-RMG-MGB.

Enclosure 1 – Brian Fogarty letter dated December 1, 2025.

Enclosure 2 – Debra Nelson letter dated November 22, 2025

Most sincerely yours,



Brian M. Fogarty

[REDACTED]

[REDACTED]

December 1, 2025

[REDACTED]

[REDACTED]

Ms. Nelson,

This letter is in response to your letter dated November 22, 2025, regarding court case 2:25-cv-00405-RMG-NGB.

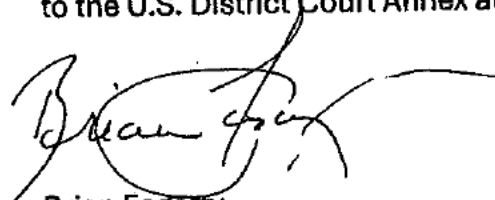
I have been informed by the defendant's legal counsel that you have reached the required number of ten (10) depositions allowed by law regarding your lawsuit.

As a result, I will not be reimbursing you \$17.14 for the cost you incurred upon yourself of sending me the afore-mentioned letter as this is a cost you elected to incur upon yourself after reaching ten (10) depositions.

Also, since you do not have the power of the court, I will not be providing you with any of my personal health information until directed by the court.

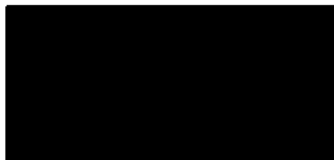
Since the lawsuit you are bringing against the defendants has reached the required number of ten (10) depositions, you are requested to cease and desist any further direct contact with me. Should the court expand the number of depositions, please advise the defendant's legal counsel if you intend to contact me further. Until that time, any further contact by you will be considered harassment.

A copy of this letter, along with a copy of your letter dated November 22, 2025, is being sent to the U.S. District Court Annex at 85 Broad St. Charleston SC 29401.



Brian Fogarty

Debra Nelson



Date: November 22, 2025

VIA CERTIFIED MAIL

Brian Fogarty



Re: URGENT NOTICE — Failure to Comply with Federal Rule 45 Subpoena
Nelson v. Curtiss-Wright Corporation
Civil Action No. 2:25-cv-00405-RMG-MGB

Mr. Fogarty,

This correspondence concerns your **failure to appear** for the deposition scheduled on **October 21, 2025**, pursuant to a duly served **Federal Rule of Civil Procedure 45 subpoena**.

You did not:

- Attend the deposition,
- Contact me,
- Seek to quash or modify the subpoena, or
- Request relief from the Court.

As a Rule 45 witness, your absence constitutes **noncompliance with a federal subpoena**, and the Federal Rules treat such noncompliance seriously.

After your non-appearance, I was informed by defense counsel — only after the fact — that you allegedly underwent **back surgery**, were **bedridden**, and were taking **opioid medication** on the day of the scheduled deposition.

Under **Rule 45(d)(3)** and **Rule 45(g)**, a non-party witness may only avoid compliance if they provide an **adequate, documented excuse**.

Verbal statements from attorneys **do not satisfy** this requirement.

MANDATORY MEDICAL VERIFICATION REQUIRED

You are hereby directed to provide a **doctor's note** or **medical statement**, signed and dated by your treating physician, that confirms:

- 1. The date and nature of the medical procedure you allegedly underwent.**

2. That you were medically unable to attend or participate in a deposition on October 21, 2025.
3. Whether prescribed medications (including opioids) impaired your ability to testify.
4. Your anticipated medical clearance date and availability for rescheduling.

This documentation is required to determine whether your non-appearance constitutes an "adequate excuse" under Rule 45.

REIMBURSEMENT OF COSTS

You must also reimburse the costs incurred as a direct result of your non-compliance, including:

- Certified mail / postage: \$17.14

These costs are recoverable under **Rule 45(d)(1) and (d)(3)**.

DEADLINE FOR COMPLIANCE

You must provide:

- The doctor's note,
- The outstanding reimbursement, and
- Your availability for rescheduling

within 5 days of receiving this letter.

NOTICE OF POTENTIAL COURT ACTION

If you fail to provide the required doctor's note, reimbursement, or availability by the deadline, I will file:

- A Motion to Compel Compliance under Rule 45(g),
- A Motion for Sanctions, and
- A Motion requesting that the Court issue a Rule 45(g) contempt warning.

A contempt finding may result in the Court imposing significant financial penalties, mandatory compliance orders, and any other relief the Court deems just.

Please send all documentation and payment to the address above and email a copy to nelsondebra62@gmail.com

Sincerely,

A handwritten signature in black ink that reads "Debra Nelson". The signature is fluid and cursive, with the first name "Debra" and last name "Nelson" clearly distinguishable.

Debra Nelson
Plaintiff, Pro Se


Brian Fogarty

CHARLESTON SC 294

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FOREVER

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2025 DEC 5 AM 1:53

U.S. District Court Annex
85 Broad St.
PO BOX 835
Charleston, SC 29402

ITEM # 100 BY
12/07/25

29402-083535

